DRUMMOND HALE LLP

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PRIVATE & CONFIDENTIAL

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ

For the attention of Ms Sarah Whitfield

Our ref: OM/HCL/2210 Your ref: SW/WC-00120/KGL 12 December 2024

Dear Sirs

Brampton Leisure Limited and Hartwell Construction Ltd — The Vault Birmingham

Letter of Response under the Pre-Action Protocol for Construction and Engineering Disputes

1. We act for Hartwell Construction Ltd ("our client"). We acknowledge your Letter of Claim dated 14 November 2024 and respond in accordance with the Protocol. Liability is denied in full.

2. Our client carried out the Works in accordance with the Contract, the Employer's Requirements and the design information provided to it. Practical Completion was certified without qualification on 8 March 2024 and no relevant defect was notified during the Rectification Period.

3. As to the alleged water ingress, the abutment detail was constructed in accordance with the design issued by your client's own façade consultant. Any ingress is attributable to your client's failure to maintain the rainwater goods. This is not a matter for which our client is responsible.

4. As to the pool water-treatment plant, it was sized and commissioned against the turnover and bathing-load figures contained in the Employer's Requirements. The water-quality excursions of which your client complains were the product of operational mismanagement and significant over-occupancy of the pool in the opening months, which materially exceeded the design bathing load.

5. As to ventilation, the air-handling installation was designed and installed to maintain the specified humidity at the design water and air temperatures. We understand that your client operated the pool hall at elevated temperatures outside the design basis, which is the cause of any condensation.

6. Without prejudice to the denial of liability, our client puts your client to strict proof of every head of loss. The loss-of-profit claim is, on any view, excessive, too remote and fails to give credit for your client's failure to mitigate. Our client also relies on the limitation provisions of the Contract, including the bespoke amendment at Schedule 7.

7. Our client is, however, prepared to attend a without-prejudice meeting and would consider mediation in due course, on the clear understanding that liability is denied.

8. We enclose the documents listed in the schedule to this letter and reserve our client's position generally.

Yours faithfully

Drummond Hale LLP